

Source -> function -> fair decision -> appeal -> accountable independence

01

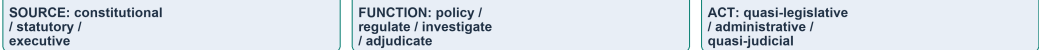
WHY REGULATION?



Market failures: monopoly, information asymmetry, externality and systemic risk. Regulation changes the technique of State action; it does not abolish the State.

02

CLASSIFY THREE TIMES



Commission, Authority, Board or civil-court powers do not determine legal status.

03

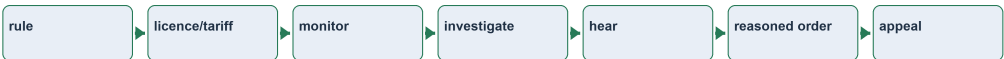
DELEGATION + DESIGN AXES



Principal-agent risk: expert information can produce drift or capture. Independence is multidimensional.

04

REGULATORY CYCLE



Combined functions improve expertise but require disclosure, recusal and functional separation where stakes demand.

05

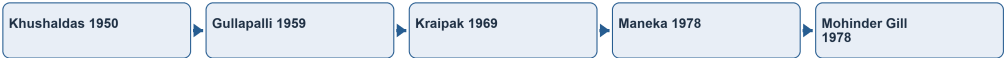
DELEGATED LEGISLATION



PTC India: APTEL cannot test CERC regulation vires. Cellular Operators: statutory fit, rationality and transparent process matter.

06

NATURAL JUSTICE



Notice -> disclosed material -> hearing -> no bias -> evidence -> speaking order. Procedure is contextual, never arbitrary.

07

APPEAL != REVIEW



Statutory correction and constitutional supervision are complementary.

08

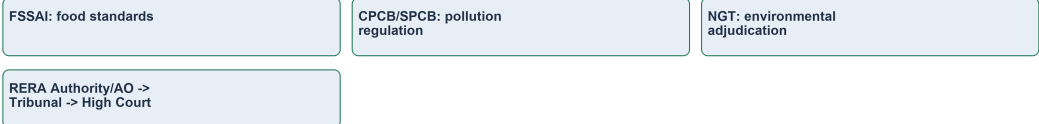
SECTOR APPEAL MAP



RBI has no single all-purpose appellate tribunal. Always trace the exact power and parent Act.

09

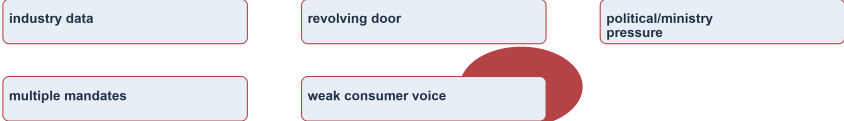
SOCIAL + REAL-ESTATE REGULATION



Regulator, adjudicating officer and tribunal may share a statute yet perform different jobs.

10

CAPTURE + COORDINATION



Repair through independent data, conflicts/recusal, inclusive consultation and lead-and-referral protocols.

11

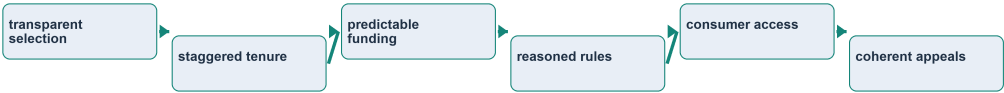
DATA + ALGORITHMS



A risk score may trigger inspection; it should not become unexplained conclusive liability.

12

REFORM + EXAM SPINE



PYQ traps: NGT != CPCB | dominance != abuse | TRAI != TDSAT | appeal != review | independence != immunity.